



**PLANNING &  
DEVELOPMENT**

2101 O'Neil Avenue  
Cheyenne, WY 82001  
(307) 637-6282  
[cheyennecity.org](http://cheyennecity.org)

## MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: Seth Lloyd  
Subject: PUDC-26-121 / Read Land – Zoning Map Amendment  
Date: June 8, 2026

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### **Background:**

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 8, 2026
- Public Services Committee June 15, 2026
- Second reading June 22, 2026
- Public Services Committee July 6, 2026
- Third and final reading July 13, 2026

### **Planning Commission Recommendation:**

The Planning Commission heard this item at their June 1, 2026, meeting and recommended the Governing Body deny this application due to the Future Land Use Map Amendment not being approved. Please see the Future Land Use Map Amendment memo for the Planning Commission discussion on the associated Future Land Use Map Amendment.

Planning Commission discussion focused on the suitability of data centers at this location (although other uses are possible, data center was disclosed by the applicant as the proposed use). Concerns were expressed that the BP zone is more appropriate at the edges of the community.

The Planning Commission Staff report is attached and unchanged.

### **Public Comment**

Between the publication of the Planning Commission Staff Report and the publication of this memo (June 3, 2026), Staff has received no new inquires or comments from the public on this project. The project page on the website has received 66 views and no comments.

### **Attachments:**

1. Ordinance
2. Planning Commission Staff Report

**ORDINANCE NO. \_\_\_\_\_**

**ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED SOUTH OF I-80, EAST OF COLLEGE DRIVE FROM AG AGRICULTURAL TO BP BUSINESS PARK.”**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the owner of real property located south of I-80, east of College Drive has applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 1, 2026, the City of Cheyenne Planning Commission conducted a public hearing and reviewed the proposed zoning map amendment that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as Lots 1 and 2, Block 1, Read Land Addition, Cheyenne, Wyoming, is hereby changed to BP Business Park.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KYLIE SODEN, CITY CLERK

Published: \_\_\_\_\_  
Wyoming Tribune-Eagle

CITY OF  
**CHEYENNE**  
PLANNING &  
DEVELOPMENT

**CITY OF CHEYENNE PLANNING COMMISSION**

**June 1, 2026**

**STAFF REPORT**

**FILE:** PUDC-26-121: Read Land – Zoning Map Amendment (zone change)

**REQUEST:** A request to rezone approximately 387 acres of land from AG Agricultural to BP Business Park.

**LOCATION:** East of College Drive, south of I-80

**AGENT:** AVI, P.C.

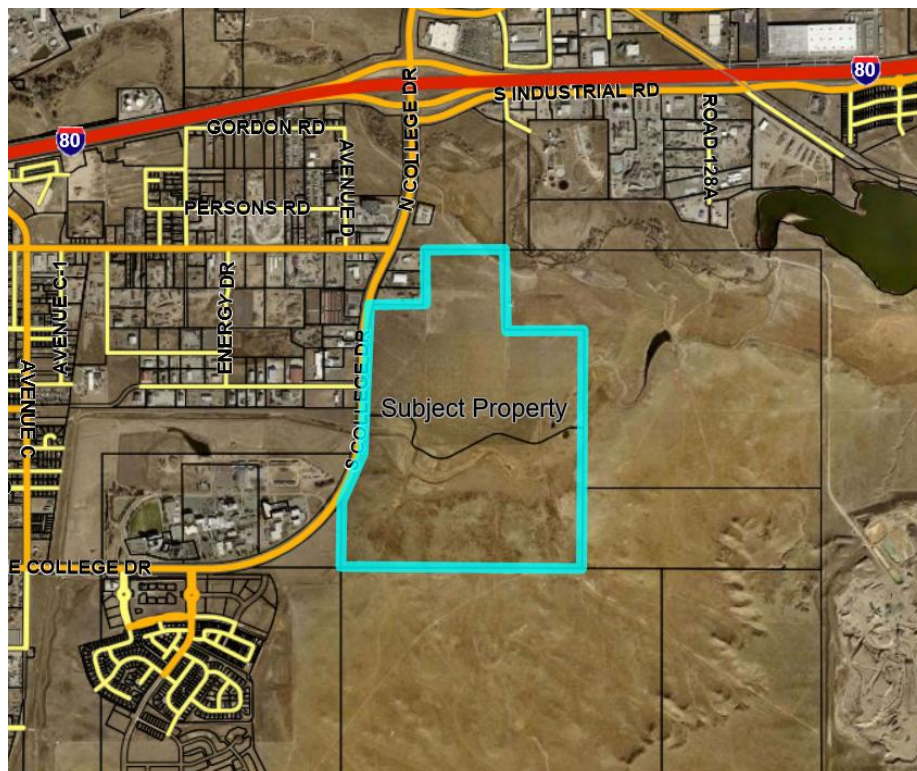
**OWNER:** Read Land Co LLC

**ZONING:** AG Agricultural

**FUTURE LAND USE:** Proposed Mixed-use Employment  
(Current – Urban Residential, Mixed-use Residential, Mixed-use Commercial, and Community Business, and Mixed-use Employment)

**PURPOSE:** To zone land BP for a data center

**PREPARED BY:** Seth Lloyd, AICP, Senior Planner



**RECOMMENDED MOTION:**

Should the associated Future Land Use Map Amendment be recommended for approval:

Move to recommend the governing body **approve** the rezoning of Lots 1 and 2, Block 1 Read Land Addition to BP Business Park as shown in the attached zone change map, noting that the project meets the review criteria for approval.

Should the associated Future Land Use Map Amendment be recommended for denial:

Move to recommend the governing body **deny** the rezoning of Lots 1 and 2, Block 1 Read Land Addition to BP Business Park as shown in the attached zone change map, noting that the project does not meet review criteria 1, 2, 5, and 8 – the BP zoning request being incompatible with the future land use designations of Urban Residential, Mixed-use Residential, and Mixed-use Commercial.

**APPLICABLE CITY CODE SECTION(S) AND PLANS:**

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

**BACKGROUND:**

This zone change application proposes changing the zoning from AG Agricultural to BP Business Park for roughly 387 acres of land. The land is currently vacant or used for agricultural purposes. The request to BP Business Park is for the purpose of data center development per the statement of the agent of the applicant. To zone land BP, other potential uses of BP zoned land should also be considered. The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report.

**SURROUNDING LAND USE AND ZONING:**

|                     | <b>Future Land Use Designation</b>                                                                       | <b>Zoning District</b>                                          | <b>Land Use</b>                                            |
|---------------------|----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|------------------------------------------------------------|
| <b>Subject Site</b> | Urban Residential, Mixed-use Residential, Mixed-use Commercial, Community Business, Mixed-use Employment | AG Agricultural                                                 | Vacant / Agricultural                                      |
| <b>North</b>        | Mixed-use Employment, Agriculture/Rural                                                                  | AG Agricultural, County LU Land Use, County LI Light Industrial | Rural Residential, Light Industrial, Vacant / Agricultural |
| <b>South</b>        | Urban Residential, Mixed-use Commercial                                                                  | Sweetgrass PUD Planned Unit Development                         | Vacant / Agricultural                                      |
| <b>East</b>         | Urban Residential                                                                                        | Sweetgrass PUD, County LU                                       | Industrial                                                 |
| <b>West</b>         | Community Business, Public Quasi Public                                                                  | County LI, County PUD                                           | LCCC, Industrial                                           |

## **ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:**

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Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

### **1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

The property is currently designated Urban Residential, Mixed-use Residential, Mixed-use Commercial, Community Business and Mixed-use Employment by the Comprehensive Plan, but a comprehensive plan amendment has been submitted to change the designation of the entire property to Mixed-use Employment.

The current designations anticipate development that is no more than a quarter industrial, and a majority residential. As the BP zone encourages industrial uses and practically prohibits residential uses, the BP zoning would not be in accordance with the comprehensive plan for this area. The Mixed-use Employment designation anticipates a mix of industrial and commercial uses, and if the entire property were designated this way the BP zone would be appropriate.

Support for this application in policies in PlanCheyenne also hinge on the future land use map amendment proposal. For example, policies within PlanCheyenne encourage a balanced mix of uses in the Cheyenne region using the future land use map as a guide (1.1.A), the flexibility to respond to market demands (1.1.B), meeting community housing needs (2.5.A), dispersing housing throughout the community (2.5.B), a business-supportive environment (3.1.C), and providing opportunities for a range of industrial uses (3.5.A).

The proposed zone change for the subject property **does not comply** with review criterion 1 under the current future land use map designations but would **comply** if the concurrent application for future land use map designation change is approved.

### **2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

Nearby property is zoned LI in the County to the northwest. Property directly north is zone AG Agriculture. County LU zoning exists to the east. To the south is the Sweetgrass PUD and to the southwest is the LCCC PUD in the County.

The County LU zone allows for a wide variety of uses, including light industrial uses, but such industry would need conditional use approval in the LU zone. The Sweetgrass PUD allows for a variety of uses, but most of the area adjacent to this parcel is slated for residential use by that PUD. The AG zone is part of a floodplain and largely used for agricultural purposes.

The proposed LI zoning is largely compatible with the current surrounding zoning.

Nearby Future Land Use designations include Mixed-use Employment and Agriculture/Rural to the north, Urban Residential to the south and east, and Community Business and Public Quasi Public along College Drive. The property is roughly 50% surrounded by Urban Residential. Based

on the future land use plans for the area, BP zoning for the entire parcel would not be considered compatible with surrounding properties. However, the subject property includes both Mixed-use Employment and Urban Residential, should the future land use map be amended, extending the border between the two designations further south and east, than BP could be considered appropriate for the entire parcel.

The proposed zone change for the subject property **does not comply** with review criterion 2 under the current future land use map designations but would **comply** if the concurrent application for future land use map designation change is approved.

**3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property is currently zoned AG Agricultural. The AG zone is intended as a holding zone pending more specific development actions. Most urban-style zones will allow a wider variety of uses than the current zone district. The proposed BP zone has limited design standards and allows a wide variety of uses.

The proposed zone change **complies** with review criterion 3.

**4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

Future development in the area will be constrained by Crow Creek and Allison Draw. The large acreages allows for a variety of street network possibilities. The BP zone allows more flexibility in street network than some of the more dense residential or commercial zones.

Major streets are designated on the future land use plan running through and around this property. Future development will be expected to provide for any major streets planned in this area.

No changes to the current street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area. Depending on the proposed use, traffic impacts could be significant.

The proposed zone change for the subject property **complies** with review criterion 4.

**5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The UDC indicates that the BP zone is intended for small and large-scale industrial development while providing essential commercial services along regional transportation routes in an industrial park setting, and applicable to areas on the edge of the community and contain not less than 320

acres of land. The areas zoned BP should be designated Community Business, Mixed-Use Employment, or and Industrial.

The subject property is over 320 acres and near regional transportation routes. It is in an area where the developed portions of the community transition to open land. However, a majority of land within the parcel is designated for future residential development. If the area is changed to be designated 'Mixed Use Employment', the BP zoning is fully compatible.

The proposed zone change for the subject property **does not comply** with review criterion 5 under the current future land use map designations but would **comply** if the concurrent application for future land use map designation change is approved.

**6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The specific development of the site as proposed by the applicant is a data center. However, should the data center use not be executed, the site is in close proximity to I-80 and other industrial or commercial uses would be logical on at least part of the site. For example, a large truck stop, hotels, or warehouses may find this location appropriate.

The proposed zone change **complies** with review criterion 6.

**7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)**

No major comments were received in regard to the proposed zone change that have not been covered under other review criteria.

The proposed zone change for the subject property **complies** with review criterion 7.

**8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)**

Cheyenne has had documented housing challenges and taking land anticipated for majority residential development and zoning that land into a Business Park would adversely affect the general welfare of the community. However, if the future land use designation changes and the land is no longer anticipated for residential development, City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **does not comply** with review criterion 8 under the current future land use map designation but would **comply** if the concurrent application for future land use map designation change is approved.

## **CONFORMANCE WITH APPLICABLE PLANS:**

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The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

## **PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:**

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Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on May 16, 2026.
- **Mailed Notice.** Evidence of mailed notice was provided showing that the letters were mailed on May 15, 2026. The mailed notice appears to have contained errors regarding the location of the property and proposed zoning.  
An updated notice was sent May 19, 2026 which corrected the deficiencies in the first notice.
- **Posted Notice.** As of the publication of the Staff Report (May 22, 2026), staff had not received evidence of posted notice; however notice is not required to be posted until May 25, 2026.
- **Internet Posting** on connect.cheyennecity.org on May 15, 2026.

As of the publication of the Staff Report (May 22, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 22 views and no comments.

## **STAFF REVIEW:**

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Through the review process, review comments were received expressing concerns about the appropriateness of the BP zone at this location.

## **CONCLUSION:**

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The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's conclusion on the proposal to zone land BP Business Park hinges on the appropriateness of the associated future land use map amendment proposal. Should the future land use map amendment be approved, the extension of 'mixed-use employment'-style development would be considered appropriate and the application would meet all review criteria. On the other hand, if the future land use map amendment is denied, this request would fail to meet review criteria 1, 2, 5, and 8.

Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report.

**ALTERNATIVES:**

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1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation** [with future land use map amendment approval]).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated. (**Staff Recommendation** [without future land use map amendment approval])
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

**General Information Regarding Alternatives:**

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

**STAFF RECOMMENDATION:**

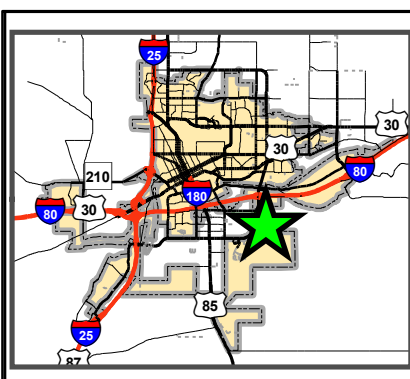
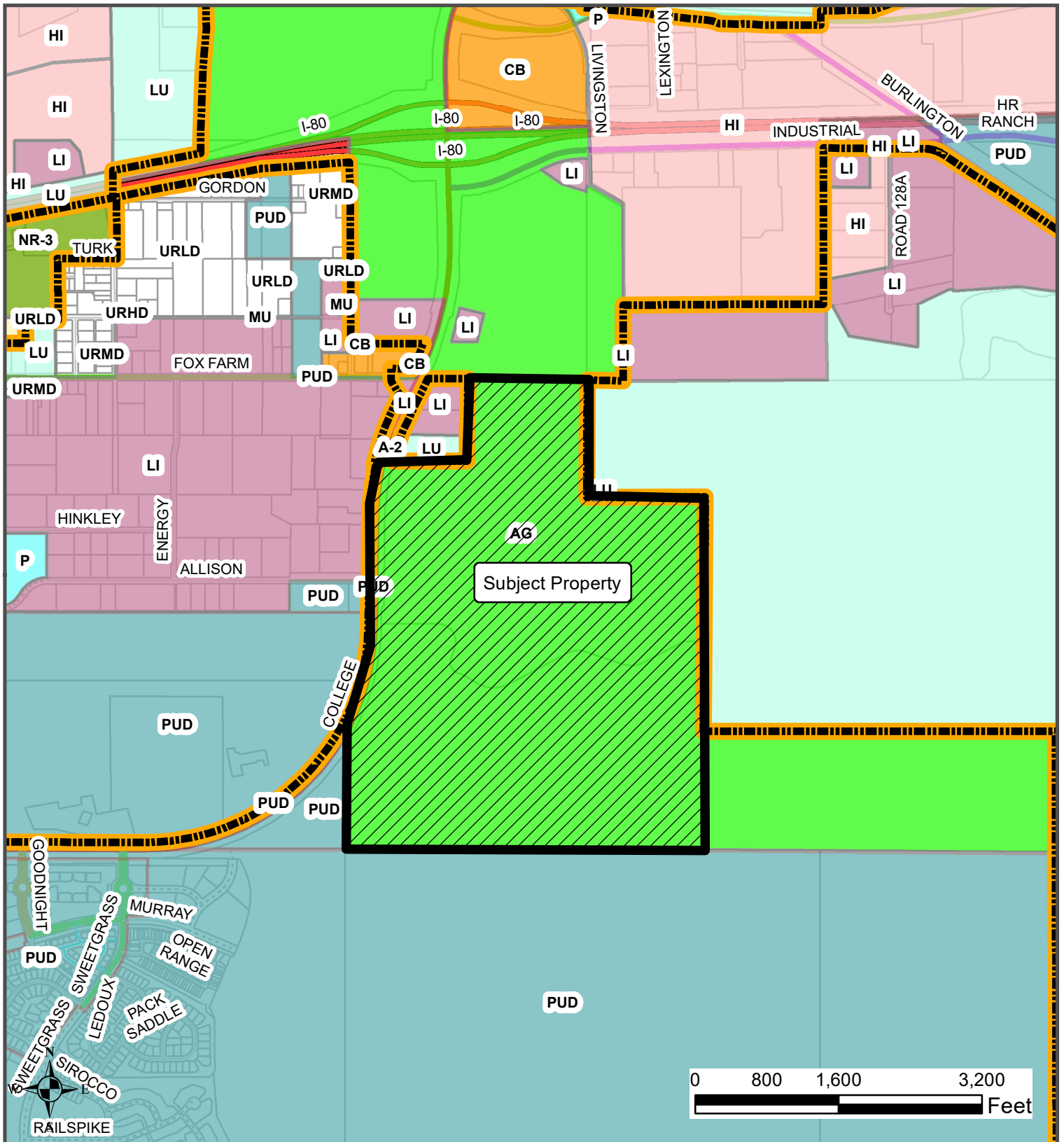
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Should the future land use map amendment be approved, staff recommends approval of the rezoning of the property from AG to BP.

Should the future land use map amendment fail, staff recommends denial of the rezoning of the property from AG to BP.

**ATTACHMENTS:**

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map



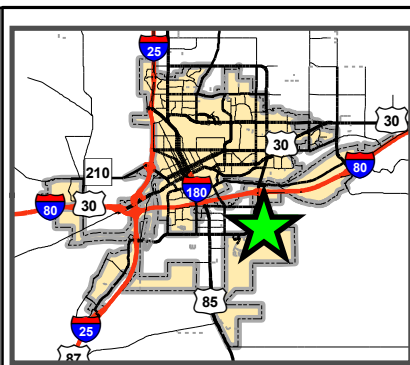
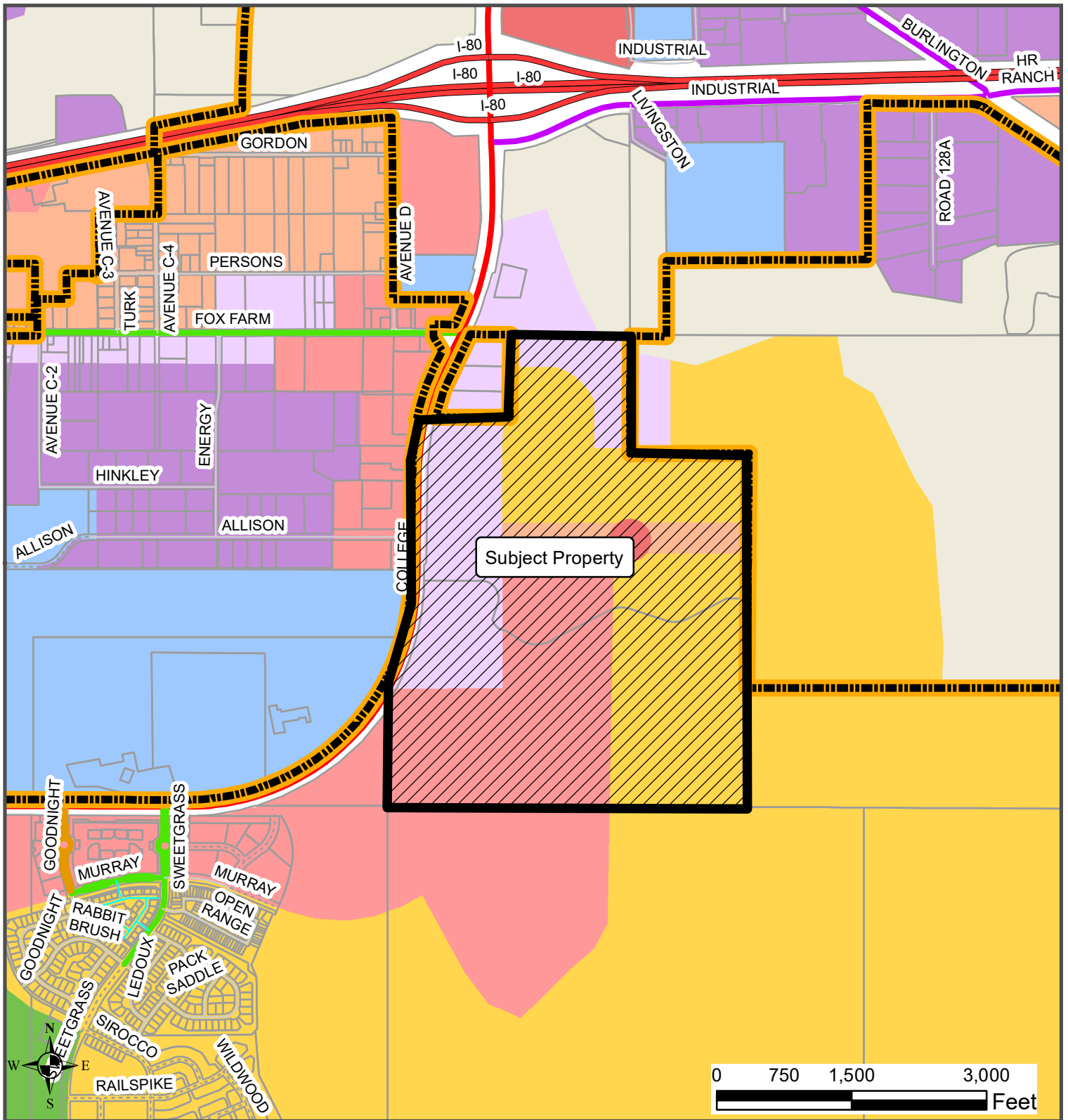
# Attachment 1: Zoning Map PUDC-26-121 and 122

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

## Legend

- Nov19\_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential

- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



## Attachment 2: Land Use Map PUDC-26-121 and 122

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

### Legend

|  |                    |  |                              |  |                           |
|--|--------------------|--|------------------------------|--|---------------------------|
|  | CHEYENNE           |  | Agricultural/Rural           |  | Industrial                |
|  | Interstate         |  | Rural Residential            |  | Central Business District |
|  | Principal Arterial |  | Urban Transition Residential |  | Community Business        |
|  | Minor Arterial     |  | Urban Residential            |  | Public and Quasi-Public   |
|  | Major Collector    |  | Mixed-Use Residential        |  | Military/Federal          |
|  | Minor Collector    |  | Mixed-Use Commercial         |  | Open Space and Parks      |
|  | Local              |  | Mixed-Use Employment         |  |                           |
|  | Private            |  |                              |  |                           |
|  | Platted not built  |  |                              |  |                           |
|  | Ownership          |  |                              |  |                           |

C. Cheyenne, WY

May 22, 2026

Record No: PUDC-26-121

Zoning Map Amendment

Status: Active

Submitted On: 5/13/2026

Primary Location

821 S COLLEGE DR  
Cheyenne, WY 82007

Owner

READ LAND CO LLC  
2708 STUART ST BERKELEY, CA 94705-1303

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name\* ?

Read Land Additon

Proposed Zoning\* ?

BP Business Park

Project Description or notes ?

Rezoning of Land for Data Center Development

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).\*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).\*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).\*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).\*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).\*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).\*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).\*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.\*

☒

Bradley Emmons

May 13, 2026

Attachments

|                                                                                                |                                                                                                                                                                                                 |                     |
|------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|
| <div></div> | <div><b>Draft Neighbor Notification Letter</b></div> <div>Zone Change to bp and future land use Notification Read Land Co.docx</div> <div>Uploaded by AVI P.C. on May 13, 2026 at 3:16 PM</div> | <div>REQUIRED</div> |
| <div></div> | <div><b>Neighbor Notification List</b></div> <div>READ LAND NEIGHBOR NOTIFICATION LIST.xlsx</div> <div>Uploaded by AVI P.C. on May 13, 2026 at 3:17 PM</div>                                    | <div>REQUIRED</div> |
| <div></div> | <div><b>Application Letter</b></div> <div>Application Letter.pdf</div> <div>Uploaded by Seth Lloyd on May 19, 2026 at 9:57 AM</div>                                                             |                     |
|                                                                                                | <div><b>Letter of Authorization</b></div>                                                                                                                                                       | <div>REQUIRED</div> |

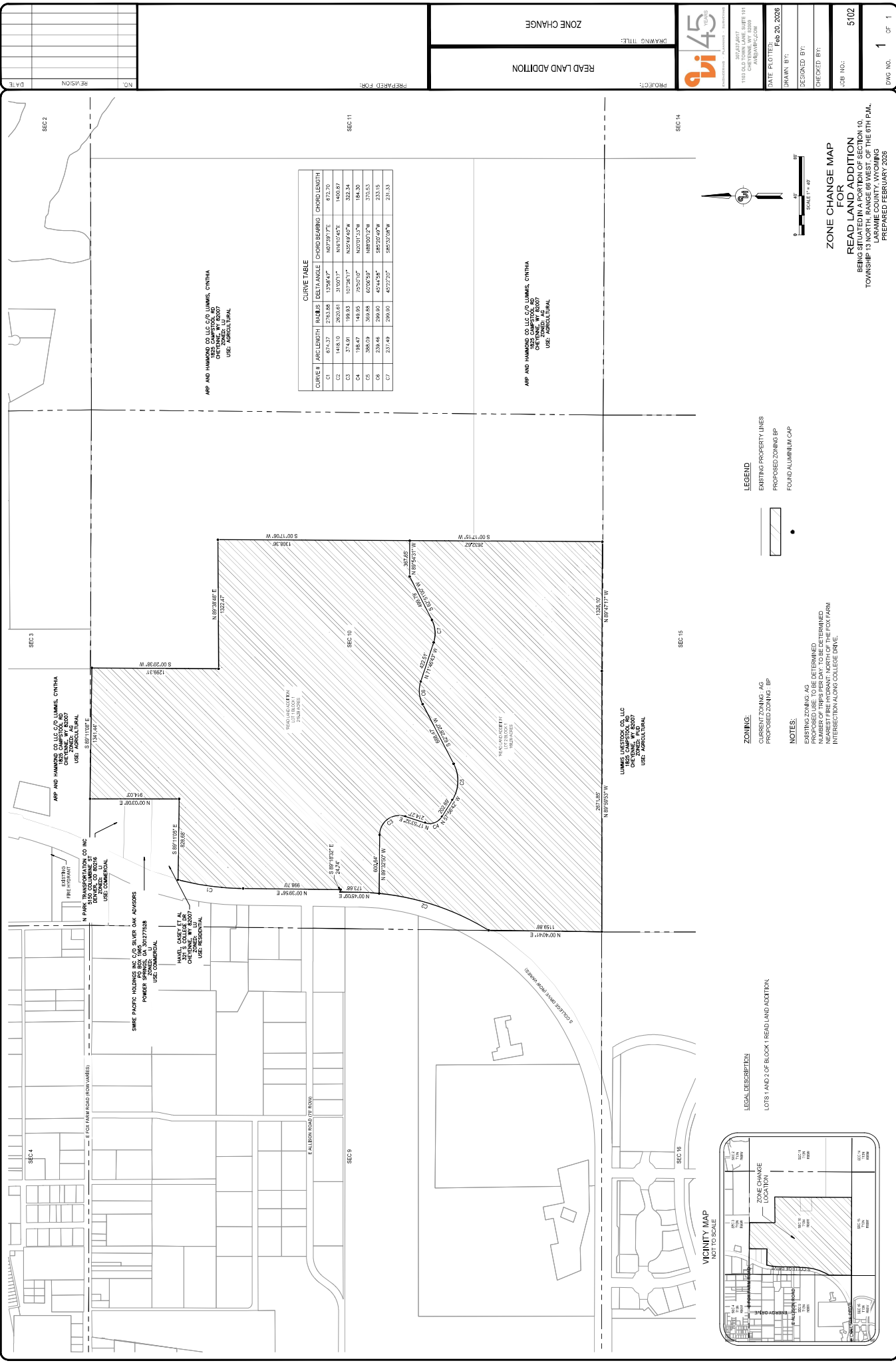


Read Land letter-of-authorization.pdf  
Uploaded by AVI P.C. on May 13, 2026 at 3:05 PM



**Proposed Zoning Map**  
5102\_ZONE CHANGE.pdf  
Uploaded by AVI P.C. on May 13, 2026 at 3:16 PM

**REQUIRED**



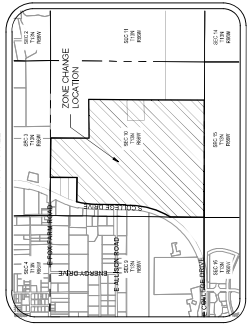
| CURVE # | ARC LENGTH | RADIUS  | DELTA ANGLE | CHORD BEARING | CHORD LENGTH |
|---------|------------|---------|-------------|---------------|--------------|
| C1      | 674.37     | 2783.95 | 129.547°    | N07°39'17"E   | 872.70       |
| C2      | 148.10     | 2620.61 | 31°00'11"   | N18°15'45"E   | 1409.87      |
| C3      | 274.91     | 199.53  | 107°30'11"  | N32°54'46"W   | 332.34       |
| C4      | 198.47     | 149.55  | 75°25'07"   | N02°01'15"W   | 184.30       |
| C5      | 268.29     | 369.88  | 62°05'39"   | N88°00'17"W   | 375.53       |
| C6      | 234.46     | 299.50  | 45°44'38"   | S85°25'49"W   | 233.15       |
| C7      | 237.49     | 299.50  | 45°22'27"   | S85°25'38"W   | 231.33       |

**LEGEND**

EXISTING PROPERTY LINES  
PROPOSED ZONING BP  
FOUND ALUMINUM CAP

**NOTES:**

EXISTING ZONING AG  
DETERMINED BY THE  
NUMBER OF TRIPS PER DAY. TO BE DETERMINED  
NEAREST FIRE HYDRANT NORTH OF THE FOX FARM  
INTERSECTION ALONG COLLEGE DRIVE.



**ZONE CHANGE MAP**  
**FOR**  
**READ LAND ADDITION**  
BEING SITUATED IN A PORTION OF SECTION 10,  
TOWNSHIP 13 NORTH, RANGE 69 WEST OF THE 6TH P.M.,  
JANUARY 1893, S.W. 1/4, SEC. 10,  
PREPARED FEBRUARY 2026